

22STCV35721 22STCV35721

County: los-angeles

Division: Civil Law and Motion

Department: 309

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Case Number: 22STCV35721 Hearing Date: September 9, 2026 Dept: 309

Superior Court of California

County of Los

Angeles

DEPARTMENT 309

TENTATIVE RULING

CESARAGUSTO GARCIA ALEMAN

vs.

414 CORONADO LCC, et al.

Case

No.: 22STCV35721

Hearing Date: September 9, 2026

Defendant 414

Coronado, LLC's demurrer is OVERRULED.

On

11/10/2022, Plaintiff Cesaraugsto Garcia Aleman (Plaintiff) initiated this action. On 7/11/2025, Plaintiff filed a first amended complaint (FAC). On

4/6/2026, Plaintiff filed a second amended complaint (SAC) against 414

Coronado, LLC, Cynthia Marie King, Jack Gorge King, John George King, Stephen

Mark Feldman, Robert H. Newman, King J& J Trust, and All in One Construction, alleging: (1) premises liability; and (2) negligence.

On

5/8/2026, Defendant 414 Coronado, LLC (Defendant or 414) demurred to the SAC.

Discussion

Defendant

argues that Plaintiff's SAC fails as a matter of law against it because: "1. Plaintiff cannot be deemed an employee of Defendant under Labor Code § 2750.5; 2. Defendant delegated responsibility for Plaintiff's safety to the contractor who employed Plaintiff." (Motion, 2:9-12.)

As

to the first contention, Plaintiff alleges that he was an unlicensed contractor employed by All in One Construction to work on property he alleges was owned by Moving Defendants. (See SAC ¶¶ 17,18.) The Court agrees that Plaintiff has not alleged facts which could show he was therefore employed by Defendant here by virtue of their hiring of All in One Construction. Plaintiff must allege facts which could show that Moving Defendants here were employers of Plaintiff under Labor Code section 2750.5.

As for the

second contention, by Plaintiff's own allegations, Defendant hired All in One Construction. Accepting this as true at the pleadings stage, a person or entity hiring an independent contractor "ordinarily delegates to that independent contractor all responsibility for the safety of the contractor's workers." (Sandoval v. Qualcomm Incorporated (2021) 12 Ca1.5th 256, 264.) California has therefore generally avoided subjecting hirers to tort liability for those workers' injuries. (Id.)

The strong

presumption under California law that a hirer delegates to an independent contractor all responsibility for workplace safety gives way to two recognized exceptions: "where the hirer either withholds critical information regarding a concealed hazard (Kinsman v. Unocal Corp. (2005) 37 Ca1.4th 659, 664); or retains control over the contractor's work and actually exercises that control in a way that affirmatively contributes to the worker's injury (Hooker v. Department of Transportation (2002) 27 Ca1.4th 198, 202)." (Sandoval,

supra, 12 Cal 5th at p. 264.)

As to the

first exception, Plaintiff previously alleged numerous facts that he was aware of the condition of the floors, i.e. he knew the hazard existed. (See, e.g. FAC ¶¶ 26-27.) Now, Plaintiff alleges: “Defendants permitted and/or created the dangerous condition on the Subject Property, so as to cause and/or allow the uneven ground floor that Plaintiff could not work on, that caused the ladder to slip out from underneath him, and the dangerous condition of the demolition site not having proper safety measures, warnings or supervision, resulting in Plaintiff falling onto the nail sticking out of a piece of wood.” (SAC at ¶ 71.)

However, still,

Plaintiff alleges that he was aware of the hazard and tried to inform the property owner. (SAC at ¶ 34.)

As to the

second exception, Plaintiff alleges Defendants All in One Construction and/or All in One Construction Services supplied and paid for materials for the worksite, and made daily visits to the site. (SAC at ¶¶ 22-23.) Further, Defendants All in One Construction and/or All in One Construction Services paid Plaintiff in cash. (SAC at ¶ 40.) However, these allegations do not pertain to Defendant here.

However, now

Plaintiff also alleges that “Plaintiff is further informed and believes, and thereon alleges, that representatives of Defendant 414 Coronado, LLC (Doe 1) were present at the Subject Property during the course of the work and had the opportunity to observe the dangerous condition of the flooring prior to the Subject Incident.” (SAC at ¶ 34.) While Defendant argues that this shows nothing but “passive oversight” and quality control inspection, the Court disagrees. Moreover, the Court disagrees that to find liability here would be for “mere failure to exercise a general supervisory power to prevent the creation or continuation of a hazardous practice.” (Kinney v. CSB Constr., Inc. (2001) 87 Cal.App.4th 28.)

Accepted as

true at the pleadings stage, this is sufficient. As such, there is a possibility that Plaintiff could show that Defendant did not delegate all

responsibility for workplace safety.

Based on the
foregoing, Defendant's demurrer is overruled.

It is so ordered.

Dated: August
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must
send an email to the court at smcdept17@lacourt.org
by 4 p.m. the day prior as directed by the instructions provided on the court
website at www.lacourt.org. If a party submits
on the tentative, the party's email must include the case number and must
identify the party submitting on the tentative.
If all parties to a motion submit, the court will adopt this
tentative as the final order. If the department
does not receive an email indicating the parties are submitting on the
tentative and there are no appearances at the hearing, the motion may be placed
off calendar. For more information, please contact the court clerk at (213)
633-0517.